



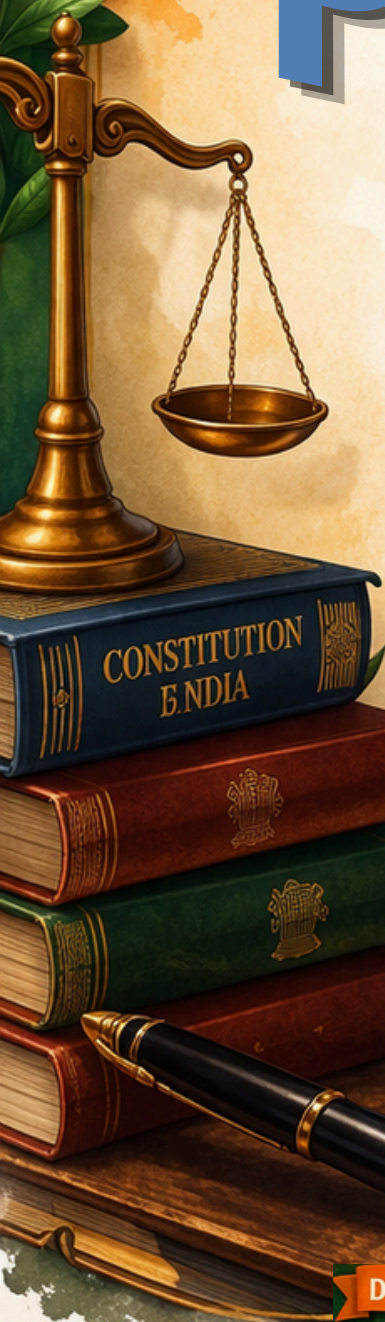
# GK PYQ SERIES

## [PART-6]

# POLITY



LECTURE-5



DEMOCRACY

JUSTICE

RIGHTS

GOVERNANCE



1 The concept of "Fundamental Duties" in the Indian Constitution was added during the tenure of which prime minister? Delhi Police2025

- A) Jawaharlal Nehru  
C) Indira Gandhi ✓

- B) Lal Bahadur Shastri  
D) Morarji Desai

**EXPLANATION:** • Fundamental Duties are non-justiciable.

- **The Justice Verma Committee (1999)** is associated with the legal enforceability of certain fundamental duties through various Legal Acts.
- **List of Duties:** Article 51A lists the fundamental duties alphabetically from (a) to (k).
- The "**Prevention of Insults to National Honour Act, 1971**" is an Indian law enacted to safeguard respect for national symbols like the flag, the Constitution, and the national anthem. It criminalizes acts of disrespect and prescribes punishments including imprisonment up to three years, fines, or both.

2 Which authority decides on doubts and disputes relating to the election of the president? Delhi Police2025

- A) Supreme Court of India ✓  
C) Election Commission of India

- B) Parliament  
D) Speaker of Lok Sabha

**EXPLANATION:**

- Article 71 deals with doubts and disputes relating to the election of the President and Vice-President.
- **Election Commission:** Articles 324 to 329 cover the powers and functions of the Election Commission.
- Article 79 mention about Parliament composition
- The Speaker of the Lok Sabha holds the authority to certify Money Bills and decide on member disqualifications due to defection, while also serving as the ex-officio Chairman of **three parliamentary committees**:
  - Business Advisory Committee,
  - Rules Committee,
  - General Purposes Committee.
- A **Pro-tem Speaker** is a temporary presiding officer appointed to run the proceedings of the newly elected lower house (the Lok Sabha or a State Legislative Assembly) until a regular Speaker is officially elected
  - The office of the Pro-tem Speaker ceases to exist the exact moment the new regular Speaker is elected by the house.
- Deputy speaker is not a subordinate post to speaker.

#### Speaker: Vacant vs. Absent Cases

- **When the Office is Vacant:** If the Speaker's office becomes permanently vacant (due to resignation, death, or removal), the Deputy Speaker takes over. If the Deputy Speaker's office is also vacant, the President appoints a member of the Lok Sabha to perform the duties of the Speaker.

- **When the Speaker is Absent:** If the Speaker is merely absent from a specific parliamentary sitting, the Deputy Speaker presides. If the Deputy Speaker is also absent, a member from the designated **"Panel of Chairpersons" (10 persons)** takes over to preside over the house.

3 Which of the following is not a constitutional body?

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- A) Public Service Commission B) NITI Aayog ✓  
C) Inter-State Council D) Finance Commission

**EXPLANATION:**

- **Public Service Commissions:** Articles 315-323 cover the UPSC and SPSC.
  - **UPSC** members serve a term of 6 years or until age 65 (6/65).
  - **SPSC** members serve for 6 years or until age 62 (6/62).
- The Joint Public Service Commission (**JPSC**) is a **statutory body**.
- **NITI Aayog Structure (Think tank):** It is an executive body formed on January **1, 2015**. Its Governing Council includes Chief Ministers and Lieutenant Governors.
  - The Chairman is the Prime Minister, the Vice-Chairperson is Suman Bery, and the CEO is Nidhi Chhibber.
- **Finance Commission:** Covered under Articles 280 and 281.
  - The Chairperson of the 16th Finance Commission of India is Dr. Arvind Panagariya.
  - **Finance Commission's recommendations** are crucial because they directly shape how tax revenues are shared between Union and States, how local bodies are funded, and how fiscal discipline is enforced across India.
  - Article 243I mention about State finance commission.

• **Union Executive:**

Consists of the President, Vice President, Prime Minister, Council of Ministers, and Attorney General.

| List of the Constitutional Bodies and related articles |                                                   |
|--------------------------------------------------------|---------------------------------------------------|
| 1. Election Commission                                 | Article 324                                       |
| 2. Union Public Service Commission                     | Article-315 to 323                                |
| 3. State Public Service Commission                     | Article-315 to 323                                |
| 4. Finance Commission                                  | Article-280                                       |
| 5. National Commission for SCs                         | Article-338                                       |
| 6. National Commission for STs                         | Article-338 A <b>added by the 89th Amendment.</b> |
| 7. Comptroller and Auditor General of India            | Article-148                                       |
| 8. Attorney General of India                           | Article-76                                        |
| 9. Advocate General of the State                       | Article-165                                       |
| 10. Special officer for linguistic Minorities          | Article-350 B <b>added by the 7th Amendment.</b>  |
| 11. Inter State Council                                | Article - 263                                     |

4 Who presides over the joint sitting of Parliament?

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- A) Chairman of Rajya Sabha B) President  
C) Speaker of Lok Sabha ✓ D) Prime Minister

**EXPLANATION:**

- **Joint Sitting (Article 108):** In a joint sitting, the Lok Sabha has a numerical advantage over the Rajya Sabha (LS > RS).

### The Three Joint Sitzings in Indian History

1. Dowry Prohibition Bill, 1961
2. Banking Service Commission (Repeal) Bill, 1978
3. Prevention of Terrorism Bill (POTA), 2002

- **State Level:** There is no provision for a joint sitting in state legislatures (Legislative Assembly > Legislative Council).
- **Presiding Hierarchy:** A joint sitting is presided over by the Lok Sabha Speaker. If absent, the Deputy Speaker presides; if they are also absent, the Deputy Chairman of the Rajya Sabha takes over.
- **Veto Powers:** The President has no veto power over Constitutional Amendment Bills (CAB) as per the 24th Amendment Act of 1971. However, Ordinary Bills (OB) are subject to veto.
  - The President of India has no Suspensive veto power in the case of a Money Bill.

| Type of Veto    | Action Taken by President        | Effect on Bill                                  | Can Parliament Override?  |
|-----------------|----------------------------------|-------------------------------------------------|---------------------------|
| Absolute Veto   | Rejects bill outright            | Bill lapses                                     | No                        |
| Suspensive Veto | Returns bill for reconsideration | Parliament can repass; then assent is mandatory | Yes, with simple majority |
| Pocket Veto     | Takes no action                  | Bill remains pending indefinitely               | No (until President acts) |

5 The State Election Commissioner is appointed by:

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- A) Governor ✓  
B) Union Home Minister  
C) President  
D) Chief Minister

#### EXPLANATION:

- **State Election Commission:** Governed by Article 243K, it specifically conducts elections for Local Bodies.
- **Tenure & Removal:** Generally 5 years, though some state-specific acts may differ (e.g., in some contexts, it is reported as 6 years or up to 65 years/68 years in specific states like UP), The removal process is identical to that of a High Court judge.

6 What was a significant feature of the Government of India Act 1935 regarding civil services?

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- A) It introduced complete independence for civil servants.  
B) It allowed civil servants to be dismissed by any government official.  
C) It provided protection of civil servants' rights and privileges. ✓  
D) It ended all civil services in India.

**EXPLANATION:** • Lord Cornwallis is credited as the Father of Civil Services in India.



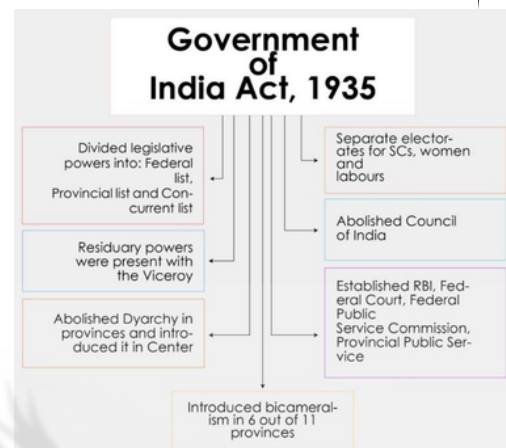
- **Charter Act 1853:** This act introduced the open competition system for civil services.

7

**The president submits resignation to:**

- A) Prime Minister
- B) Vice President ✓
- C) Speaker of Lok Sabha
- D) Chief Justice of India

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### EXPLANATION:

- The President submits their resignation to the Vice President, and vice-versa.
- the Speaker of the Lok Sabha submits their resignation to the Deputy Speaker, and vice-versa.
  - The **President** fixes the date for the election of the Speaker.
  - The **Speaker** fixes the date for the election of the Deputy Speaker.

8

**What is the main function of the Lokpal ?**

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- A) To conduct elections
- B) To investigate allegations of corruption against high public officials ✓
- C) To protect human rights
- D) To act as the government's lawyer

### EXPLANATION:

- Lokpal Acts as an anti-corruption "watchdog" and the concept originated from the "Ombudsman" system in Sweden.
- The **CVC Act, 2003** transformed the Central Vigilance Commission into a statutory authority, strengthening India's institutional framework against corruption, on the recommendation of K. Santhanam Committee.
- **First Lokpal** of India, **Justice Pinaki Chandra Ghose** (Appointed in March 2019).
- The **current Lokpal** is Justice A. **M. Khanwilkar**, appointed in March 2024.

| Appointment        | President                                                                                                                                                | Governor                                                                                                                                                                                                   |
|--------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                    | <b>LOKPAL</b>                                                                                                                                            | <b>LOKAYUKTA</b>                                                                                                                                                                                           |
| <b>Description</b> | Central governing body that has jurisdiction over all Members of Parliament and central government employees in cases of corruption                      | State level governing bodies that has jurisdiction over state government employee in cases of corruption                                                                                                   |
| <b>Function</b>    | To address complaints of corruption, to make inquiries, investigations, and to conduct trails for the cases                                              | To address complaints of corruption, to make inquiries, investigations, and to conduct trails for the cases                                                                                                |
| <b>Committee</b>   | a chairperson and a maximum of eight members, of which 50% will be judicial members 50% members of Lokpal shall be from SC/ST/OBCs, minorities and women | Proposal: three-member body, headed by a retired Supreme Court judge or high court chief justice and comprising the state vigilance commissioner and a jurist or an eminent administrator as other members |

- Maharashtra was the first state to establish a Lokayukta (1972).
- The term "**Lokpal**" was first coined by **Dr. L. M. Singhvi**.

4

- **1966 ARC** (Desai/Hanumanthaiya): First formal recommendation for Lokpal/Lokayuktas.
- **2005 ARC** (M. Veerappa Moily): Urged immediate establishment of Lokpal.
- **2013 Act:** Lokpal finally created after decades of delay. **(ARC) Administration reforms commission**
- **Selection Committee:** Includes the Prime Minister (Chair), Lok Sabha Speaker, Leader of Opposition (LoP), Chief Justice of India (or an SC judge), and an eminent jurist.
- **Structure:** It is a statutory body comprising 1 Chairperson and 8 members (1+8).

**9 Which Schedule of the Indian Constitution contains the provisions of the Anti-defection Law, defining disqualification on grounds of defection for legislators in Parliament and State Legislatures?**

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- A) Sixth B) Eighth  
C) Tenth D) Ninth

### EXPLANATION:

- The Speaker decides on **disqualifications** under the anti-defection law.
- The **Anti-Defection Law** was added by the **52nd** Constitutional Amendment.
- Council Size:
  - **Article 75(1)(A)** restricts the size of the Council of Ministers to 15% of the Lok Sabha's total strength.
  - **Article 75(1)(B):** A member of either House of Parliament who is disqualified under the Tenth Schedule (anti-defection law) cannot be appointed as a Minister.

added by 91<sup>st</sup> ammendment

| 12 Schedules of Indian Constitution |             |                                                                                                                                                                      |
|-------------------------------------|-------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| T                                   | Schedule 1  | State and Union Territories Name and their Boundary details                                                                                                          |
| E                                   | Schedule 2  | Special Powers and Salary details of President, Governors of state, Speakers and Deputy speakers of Rajiya Sabha and Lok Sabha, Supreme Court and High Court Judges. |
| A                                   | Schedule 3  | Oath and Promises of all authority except President and Vice President.                                                                                              |
| R                                   | Schedule 4  | Rajiya Sabha MP count of state and Union Territories                                                                                                                 |
| S                                   | Schedule 5  | Scheduled Area and scheduled Tribes Administration and control Law Details                                                                                           |
| O                                   | Schedule 6  | States of Assam, Meghalaya, Tripura, and Mizoram: Tribal Areas: Administration and Control Law Details(Trick- ATM money))                                            |
| F                                   | Schedule 7  | Detailed List of Union and State Government Power and Concurrent List                                                                                                |
| O                                   | Schedule 8  | Official Languages( Originally-14, at present- 22)                                                                                                                   |
| L                                   | Schedule 9  | Validation of Certain Acts and Regulations (added by 1 <sup>st</sup> AA 1951)                                                                                        |
| D                                   | Schedule 10 | Details about Party Changes and Disqualification of MPs/MLAs(added by 52 <sup>nd</sup> AA 1985)                                                                      |
| P                                   | Schedule 11 | Responsibilities and Powers of Panchayat(added by 73 <sup>rd</sup> AA 1992) Functional items 29                                                                      |
| M                                   | Schedule 12 | Responsibilities and Powers of Municipalities(added by 74 <sup>th</sup> AA 1992) Functional items 18                                                                 |

- **Eighth Schedule Languages:** Languages were added via amendments: **Sindhi** (21st CA); **Nepali, Manipuri, and Konkani** (71st CA); **Bodo, Dogri, Santhali, and Maithili** (memorized as BDSM via the 92nd CA).
- **Ninth Schedule:** Associated with Article 31B and the landmark I.R. Coelho case.



10

The criteria of single citizenship was taken from which of the following country's constitution?

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A) USSR

B) Britain ✓

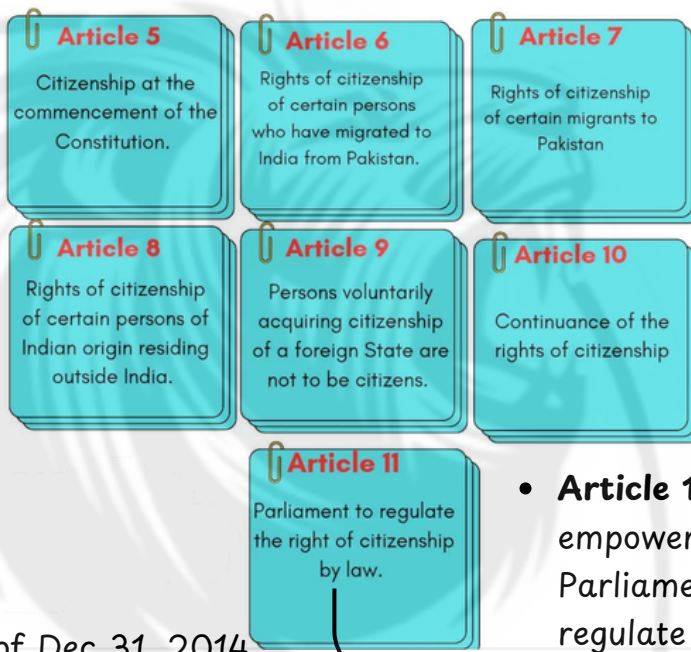
C) Canada

D) France

**EXPLANATION:** • **Citizenship Laws:** Covered in Part 2 of the Constitution (Articles 5-11).

- The Citizenship Act of 1955 prescribes 5 methods to acquire citizenship:
  - By Birth (Sec-3),
  - By Descent (Sec-4),
  - By Registration (Sec-5),
  - By Naturalization (Sec-6),
    - **6A** Citizenship (Amendment) Act, 1985 after the Assam Accord.
    - **6B** - Citizenship under CAA, 2019
  - By Incorporation of territory (Sec-7).

## PART 2 (CITIZENSHIP)



- **Article 11** empowers Parliament to regulate citizenship by a simple majority.

- **The CAA 2019** set a cutoff date of Dec 31, 2014, granting citizenship to 6 non-Muslim communities (Hindus, Sikhs, Buddhists, Jains, Parsis, Christians) fleeing from Afghanistan, Pakistan, and Bangladesh
  - Residence requirement reduced from 11 years to 5 years.

- **Loss of Citizenship:** Occurs through 3 methods:
  - **Renunciation, Termination, and Deprivation.**

11

Which of the following is incorrectly matched with its description from the Preamble?

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A) Sovereign - Independent in external and internal matters

B) Socialist - Promotes social equality

C) Secular - Promotes one religion above others ✓

D) Democratic - Government elected by the people

**EXPLANATION:**

- **Important Cases:** Key cases interpreting the Preamble include the Berubari Union Case (1960) and the Kesavananda Bharati Case (KBC).
- **Amendments:** It has been amended only once through the 42nd Constitutional Amendment.

**12** When the office of the president remain vacant, what is the deadline to conduct new election and appoint new president?

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- A) 3 months  
B) 15 days  
C) 1 year  
D) 6 months ✓

**13** The Constitution of India originally comprises of \_\_\_\_\_ number of articles, which later on increased to 448 articles through amendments.

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- A) 395 ✓  
B) 387  
C) 410  
D) 385

### EXPLANATION:

#### • Parts of the Constitution:

- The Constitution originally had 8 schedules; it currently has 12 schedules.
- The Constitution originally had 22 parts; it currently has 25 parts.
- Added Parts:** Part IVA (Fundamental Duties) was added by the 42nd Amendment. Part IXA deals with Municipalities (74<sup>th</sup> amendment), Part IXB deals with Cooperative Societies (97<sup>th</sup> amendment), and Part XIVA deals with Tribunals (42nd amendment).
- Repealed Parts:** Part VII was repealed by the 7th Constitutional Amendment in 1956

**14** Which committee was instrumental in recommending changes to the Centre-State relations in India?

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- A) Ashok Mehta Committee  
B) Balwant Rai Mehta Committee  
C) Sarkaria Commission ✓  
D) Punchhi Commission

### EXPLANATION:

- Committees on Governance:** The Balwant Rai Mehta Committee was formed in 1957. The Ashok Mehta Committee (1977) recommended a 2-tier Panchayati Raj system. The Punchhi Commission on Centre-State relations was established in 2007.

| Committee / Commission             | Explanation                                                                                                                                                                      |
|------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Ashok Mehta Committee (1977)       | Recommended a two-tier Panchayati Raj system (Zila Parishad & Mandal Panchayat), emphasized political party participation in local elections and strengthening decentralization. |
| Balwant Rai Mehta Committee (1957) | Suggested three-tier Panchayati Raj system (Village, Block, District) and emphasized democratic decentralization. It became the foundation of Panchayati Raj in India.           |
| Sarkaria Commission (1983)         | Examined Centre-State relations and recommended measures to improve cooperative federalism and balance of power between Union and States.                                        |
| Punchhi Commission(2007)           | Reviewed Centre-State relations (follow-up to Sarkaria Commission) and suggested reforms in areas like governor's role, emergency provisions, and autonomy of states.            |



15

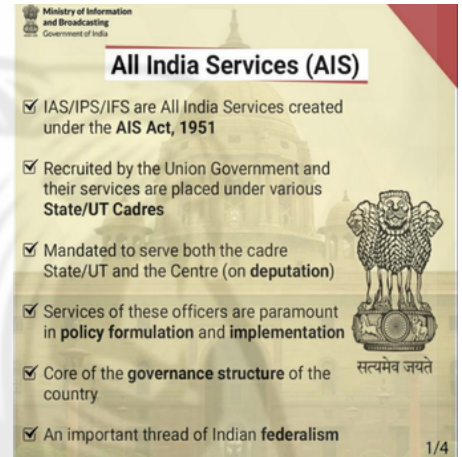
Which of the following statements about the All India Services (AIS) is correct?

SELECTIO POST PHASE XIII- 31/07/2025 Shift:1

- A) All India Services officers can be transferred between states without the consent of the state governments.
- B) The officers are recruited and controlled by the State Governments only.
- C) The officers serve the Union Government exclusively.
- D) The ultimate control lies with the Union Government. ✓

**EXPLANATION:**

- **All India Services (AIS):** Article 312 empowers the Rajya Sabha to create new All India Services.
  - AIS represents a "**unitary**" feature of the Indian Constitution.
  - The All India Services Act was passed in 1951.
    - The Indian Forest Service (IFS) was created in 1966.



16

Consider the following statements:

1. President can dissolve Lok Sabha on his own discretion.
2. Governor appoints Chief Minister in a hung assembly.
3. Governor has no role in Money Bills.

SELECTIO POST PHASE XIII- 28/07/2025 – Shift: 1

Which of the above is/are correct?

- A) 2 only ✓
- B) 1 only
- C) 3 only
- D) 1, 2 and 3

**EXPLANATION:**

- **Executive Powers:** Article 74 mandates the President to act on the advice of the Council of Ministers. The President summons, prorogues, and dissolves the Lok Sabha. Articles 163 and 200 outline specific powers of the Governor.
  - **Summons** = Call to meet.
  - **Prorogues** = End of a session. In both LS & RS
  - **Dissolves** = End of the Lok Sabha itself.
- **Bill Lapsing Rules:** Bills originating and pending in the Rajya Sabha do NOT lapse upon Lok Sabha dissolution. Bills passed by both houses pending the President's assent do NOT lapse. Bills pending a joint sitting also do NOT lapse.

What happens in the case of a Hung Assembly?

In India, if a state legislative election results in a "Hung Assembly" and no party can gain confidence, then re-polling is announced and conducted as soon as possible. Until then President's rule is applied. India has seen such hung assemblies numerous times



8

| Discretionary Power of President | When Used                           |
|----------------------------------|-------------------------------------|
| Appointment of PM                | Hung Parliament, no clear majority  |
| Dismissal of Government          | Loss of majority, refusal to resign |
| Dissolution of Lok Sabha         | No stable government possible       |
| Returning Bills                  | Non-money bills for reconsideration |
| Pocket Veto                      | Withholding assent indefinitely     |

| Aspect                | Current System       | Proposed Change (131st CAA)   |
|-----------------------|----------------------|-------------------------------|
| Lok Sabha seats       | 543                  | 850                           |
| State Assemblies      | Frozen since 1976    | Expanded based on 2011 Census |
| Basis of delimitation | 1971 Census (freeze) | 2011 Census                   |
| Women's reservation   | Passed but pending   | Enabled before 2029 polls     |

17

Which of the following Fundamental Rights are not available to foreigners in India?

SELECTIO POST PHASE XIII- 25/07/2025 - Shift: 1

- 1.Right against discrimination (Article 15)
- 2.Freedom of speech and expression (Article 19(1)(a))
- 3.Right to protection in respect of conviction (Article 20)
- 4.Right to life and personal liberty (Article 21)

- A) 1 and 2 only ✓  
C) 1 and 4 only

- B) 2 and 3 only  
D) 1, 2 and 3 only

### EXPLANATION:

- **Exclusive Rights:** Articles 15, 16, 19, 29, and 30 are fundamental rights exclusive to Indian citizens.
- **Article 19:** Article 19(1) includes six freedoms memorized as "**SAAMRO**":
  - Speech (a), Assembly (b), Association (c), Movement (d), Residence (e), and Occupation (g). Articles 19(2) to 19(6) lay down reasonable restrictions.
    - The 97th Amendment added the right to form Cooperative Societies under this article.
- **Article 21 (Life & Liberty):** Covers the Right to Livelihood, Shelter, Internet, Privacy, Sleep, and Dignity (Maneka Gandhi case).
  - **Euthanasia Cases:** The Aruna Shanbaug case is associated with passive euthanasia, while the Common Cause case relates to passive euthanasia guidelines.



18

Which Parliamentary Committee contains members only from Lok Sabha?

- A) Public Accounts Committee
- B) Committee on Public Undertakings
- C) Estimates Committee ✓
- D) Business Advisory Committee

SELECTIO POST PHASE XIII- 25/07/2025 – Shift: 1

### EXPLANATION:

#### Committee Types: Parliamentary Committees

##### Permanent (Standing)

- **Public Accounts Committee (PAC):** Has 22 members (15 LS + 7 RS). The CAG acts as a "guide and philosopher" to the PAC, established in 1921 through government of India act 1919.
  - **Role:** - Examines CAG reports, checks expenditure.
- **Estimates Committee (EC):** Has 30 members (all from Lok Sabha) and was established in 1950 on John Mathai's recommendation.
  - **Role:** - Focuses on future expenditure and efficiency in budget.
- **Committee on Public Undertakings (PUC):** Has 22 members (15 LS + 7 RS) and was established in 1964 on Krishna Menon's recommendation, its chairman is from loksabha.
  - **Role:** - Examines public undertakings reports.

##### Temporary (Ad-Hoc).

#### Similarities in all 3 committees of financial committee

- No minister can be a member of the financial committees.
- Every member term is 1 year.
  - Elected by proportional representation + single transferable vote.
- **DRSCs:** There are 24 Departmental Related Standing Committees (16 under Lok Sabha and 8 under Rajya Sabha).
  - In every committee 31 members (21 from LS & 10 From RS)
- **The Speaker of Lok Sabha** heads the Business Advisory Committee (BAC), General Purposes Committee (GPC), and Rules Committee (RC).
- **The Deputy Speaker's** special privilege is that if he becomes a member of the any parliamentary Committee, he automatically assumes the role of its chairman.

19

Consider the following statements:

SELECTIO POST PHASE XIII- 31/07/2025 – Shift: 1

1. Article 35 is included in Part IV of the Constitution.
2. It empowers State legislatures to create special laws for Jammu and Kashmir.
3. It vests Parliament with the power to make laws for enforcing Fundamental Rights.

10

Which of the statements is/are correct?

- A) 2 only  
B) 1 only  
C) 3 only ✓  
D) 1, 2 and 3

**EXPLANATION:**

• **Exceptions to Rights:**

- **Article 33** allows Parliament to restrict certain fundamental rights of the armed forces.
- **Article 34** deals with the restriction of rights during the enforcement of Martial Law.

**20 Match the financial power/body with its primary function:**

Delhi Police 2025

**List I (Power/Body)**

1. Finance Commission
2. Art. 282
3. Consolidated Fund
4. Contingency Fund

**List II (Function)**

- P. Discretionary grants
- Q. Unexpected expenses
- R. Tax distribution
- S. All Union revenues

- A) 1-R, 2-P, 3-S, 4-Q ✓  
C) 1-S, 2-Q, 3-R, 4-P

- B) 1-Q, 2-S, 3-P, 4-R  
D) 1-P, 2-R, 3-Q, 4-S

**EXPLANATION:**

**Financial Articles:**

- The **Finance Commission** is established under Article **280**.
- The **Consolidated Fund** of India is governed by Article **266**.
- The **Contingency Fund** of India is governed by Article **267**.

**21 Which of these is not a feature of Indian federalism?**

SSC MTS 2025

- A) Independent Judiciary  
B) Written Constitution  
C) Dual Citizenship ✓  
D) Division of Powers

**EXPLANATION:** • The word "Federalism" is not mentioned anywhere in the Indian Constitution.

- India's system was described as "**Quasi-federal**" by **K.C. Wheare**.
- It was described as "**Cooperative federalism**" by **Granville Austin**.
- It was described as "**Bargaining federalism**" by **Morris Jones**.
- It was described as "**Federalism with a centralizing tendency**" by **Ivor Jennings**.

**22 In Lok Sabha, how many seats were reserved for Scheduled Tribes?**

SSC MTS 2025

- A) 54  
B) 56  
C) 47 ✓  
D) 84

**EXPLANATION:**

- **Article 330** provides for the reservation of seats for SC and ST in the Lok Sabha, specifically 84 seats for SC and 47 seats for ST.
- **Article 332** provides for the reservation of seats for SC and ST in the State Legislative Assemblies.
- The **104th Constitutional Amendment** removed the provisions of : -
  - **Article 331** (which allowed the nomination of 2 Anglo-Indians in the Lok Sabha) and **Article 333** (which allowed representation of the Anglo-Indian community in State Legislative Assemblies).



- **The 104th Constitutional Amendment** also extended the reservation provisions of Articles 330 and 332 for an additional 10 years.

23

Which of the following statements based on the Union List entries is/are correct?

SSC MTS 2025

1. The Parliament has exclusive power to legislate on lotteries conducted by both the Central and State governments. ✓
2. Matters related to the incorporation and regulation of cooperative societies are included in the Union List. ✗
3. The Reserve Bank of India, foreign exchange, and currency are all under the legislative domain of the Union. ✓
4. Parliament can make laws regarding corporations whose activities are not limited to one State, excluding universities. ✓

#### EXPLANATION:

- **The 97th Constitutional Amendment** added Part 9(B) to the Constitution, which deals with Cooperative Societies.
  - Cooperative Societies are included in Article 43(B) as a Directive Principle of State Policy (DPSP) and in Article 19(1)(c) as a Fundamental Right.
- **Inter-state trade and commerce** falls under the **Union List**.

24

Which of the following accurately describes the statutory responsibilities of the Lokpal under the Lokpal and Lokayuktas Act, 2013?

SSC Steno 2025

(A) The Lokpal is mandated to provide the President with an annual report, which will be laid before both Houses of Parliament. ✓

(B) The Lokpal operates under the direct administrative control of the Prime Minister's Office.

(C) The Lokpal must submit regular reports to the Election Commission for public disclosure.

(D) The Lokpal is a constitutional body tasked with making final judgments in corruption cases Not Answered



25

Which of the following statements is correct in the context of constitutional interpretation and judicial doctrine?

SSC Steno 2025

(A) The Constitution of India clearly defines the term "basic structure" under Article 368.

(B) The Judiciary rejected the idea of spirit-based interpretation and strictly follows the written text.

(C) The "basic structure" doctrine was brought into existence by the Supreme Court to protect the fundamental features of the Constitution ✓

(D) The Parliament can propose amendments that repeal judicial principles without limitation.

12

## EXPLANATION:

- The 'Basic Structure' concept originated from the **Kesavananda Bharati case of 1973**.

**Components of the Basic Structure include:**

- The federal and secular character of the Constitution.
- The democratic character of our polity.
- Freedom of thought, expression, belief, faith, and worship.
- A welfare state and egalitarian society.
- Equality of status and opportunity.
- Separation of powers; (**India does not have a "strict separation of powers", but America has**).
- Dignity of the individual.
- Unity and integrity of the nation.
- Sovereignty of India.

**26** Which of the following pairs is correctly matched with respect to the Schedules of the Indian Constitution?

SSC Steno 2025

- (A) Eleventh Schedule - Powers and responsibilities of Panchayats ✓  
 (B) Twelfth Schedule - Election of President and Vice-President  
 (C) Tenth Schedule - Constitutionally recognized languages.  
 (D) Ninth Schedule Allocation of powers between Union and States

## EXPLANATION:

| Schedule | Amendment       | Applies to             | No. of Functions | Examples                                 |
|----------|-----------------|------------------------|------------------|------------------------------------------|
| 11th     | 73rd CAA (1992) | Panchayats (rural)     | 29               | Agriculture, rural housing, education    |
| 12th     | 74th CAA (1992) | Municipalities (urban) | 18               | Urban planning, sanitation, water supply |

**27** Identify the following constitutional attributes with their respective democratic values:

SSC Steno 2025

### Column A

- a. Fundamental Duties  
 b. Equal voting rights  
 c. Local self-government provisions responsibilities  
 d. Religious freedom assurance

### Column B

- i. Grassroots democracy  
 ii. Respect for individual conscience  
 iii. Recognition of citizens'  
 iv. Principle of universal franchise

(A) a - ii, b - i, c - iv, d - iii

(B) a - i, b - ii, c - iii, d - iv

(C) a - iii, b - iv, c - i, d - ii ✓

(D) a - iv, b - iii, c - ii, d - i

## EXPLANATION:

- The **61st Constitutional Amendment** (1988, implemented in 1989) reduced the voting age from 21 years to 18 years.



|            |                                                                                                                     |
|------------|---------------------------------------------------------------------------------------------------------------------|
| Article 26 | Protects the autonomy of religious groups to manage their institutions and property.                                |
| Article 27 | Prohibits the use of tax money for promoting or maintaining any particular religion.                                |
| Article 28 | Regulates religious instruction in educational institutions, ensuring neutrality in state-run schools.              |
| Article 29 | Protects the cultural, language, and script rights of citizens, especially minorities (any section of the citizen). |
| Article 30 | Grants minorities the right to establish and administer educational institutions of their choice.                   |

**28** Which of the following best reflects the constitutional dilemma in implementing the Uniform Civil Code (UCC) in India, as discussed in debates surrounding Article 44 and Article 25? SSC Steno 2025

- (A) UCC allows gender-based personal law systems to remain untouched under Article 14
- (B) UCC enforces cooperative federalism by giving states legislative powers on personal law
- (C) UCC operationalises the secular ethos by completely eliminating all religious laws
- (D) UCC aligns with Article 44 but may be seen to infringe upon religious freedom under Article 25 ✓

**EXPLANATION:**

- **Article 44** deals with the Uniform Civil Code.
- **Article 25** deals with the freedom of conscience and the right to freely profess, practice, and propagate religion.

**29** Which Article provides for the secretarial staff of State Legislature ? SSC Steno 2025

- A) Article 98
- B) Article 99
- C) Article 187 ✓
- D) Article 188

**EXPLANATION:**

- **Article 187** provides for the secretarial staff of the State Legislature.
  - The secretarial staff is appointed by the House itself; **for example**, in the Lok Sabha, they are appointed by the Speaker of the Lok Sabha, and in the Rajya Sabha, by the Chairman of the Rajya Sabha.
- **Under Part 5**, Article 98 pertains to the Secretariat of Parliament.
- **Article 99** deals with the oath or affirmation by members.
- **Article 100** deals with voting in the Houses and the quorum.
  - **Article 100(1)** states that the Speaker/Chairman shall not vote in the first instance, but will exercise a casting vote in the event of a tie.

- **Article 100(3)** specifies the quorum: a minimum of 1/10th (or 10%) of the total number of members of the House is required to proceed with the proceedings.
- **Article 100(4)** states that if the quorum is not met, the House is adjourned by the presiding officer.
- **Types of Voting by the Presiding Officer:**
  - **"At First Instance"**: Refers to the general voting that takes place the first time around.
  - **"Casting Vote"**: Refers to the decisive vote cast in the situation where there are an equal number of votes (a tie).
- **Voting Rights During Removal Resolutions (RS vs. LS Cases):**
  - **Rajya Sabha (RS) Case**: During a resolution for his removal, the Chairman of the Rajya Sabha cannot cast any vote at all, because he is not a member of either House.
  - **Lok Sabha (LS) Case**: While a resolution for his removal is under consideration, the Speaker can only exercise a vote "at first instance" (general voting) and cannot use a "casting vote".
- **Article 88** deals with the rights of Ministers and the Attorney General, specifically noting that they have the right to vote only in the House of which they are a member.
- **Part 5 of the Constitution** is dedicated to the Union Executive and is **divided into 5 chapters**.
  - **Chapter I** covers the Union Executive, which comprises the President, Vice President, Prime Minister, Council of Ministers, and the Attorney General, spanning Articles 52 to 78.
  - **Chapter II** deals with the Parliament, covered under Articles 79 to 122.
  - **Chapter III** pertains to the Legislative Powers of the President, specifically under Article 123.
  - **Chapter IV** covers the Union Judiciary, spanning Articles 124 to 147.
  - **Chapter V** details the Comptroller and Auditor General (CAG) of India, covered under Articles 148 to 151.
- **Part 6 of the Indian Constitution** serves as the **"Constitution of the States"** and outlines the structure of state governments; it covers Articles 152 to 237.
  - **Chapter I**: General (Article 152), Defines the term "State" for the purposes of this specific part of the Constitution
  - **Chapter II**: The State Executive (Articles 153 to 167), include Governor, Chief Minister and the Council of Ministers, Advocate-General.
  - **Chapter III**: The State Legislature (Articles 168 to 212).
  - **Chapter IV**: Legislative Power of the Governor (Article 213).
  - **Chapter V**: The High Courts in the States (Articles 214 to 231).
  - **Chapter VI**: Subordinate Courts (Articles 233 to 237).



## Chapter V. — The High Courts in the States

Article 214: High Courts for States

Article 215: High Courts to be courts of record

Article 216: Constitution of High Courts

Article 217: Appointment and conditions of the office of a Judge of a High Court

Article 218: Application of certain provisions relating to Supreme Court to High Courts

Article 219: Oath or affirmation by Judges of High Courts  
→ Oath by governor

Article 220: Restriction on practice after being a permanent Judge

Article 221: Salaries, etc., of Judges

Article 222: Transfer of a Judge from one High Court to another

Article 223: Appointment of acting Chief Justice

Article 224: Appointment of additional and acting Judges

Article 224A: Appointment of retired Judges at sittings of High Courts

Article 225: Jurisdiction of existing High Courts

Article 226: Power of High Courts to issue certain writs

Article 227: Power of superintendence over all courts by the High Court

Article 228: Transfer of certain cases to High Court

Article 229: Officers and servants and the expenses of High Courts

Article 230: Extension of jurisdiction of High Courts to Union territories

Article 231: Establishment of a common High Court for two or more States

| Court         | Writ Jurisdiction | Scope of Enforcement                      |
|---------------|-------------------|-------------------------------------------|
| Supreme Court | Article 32        | Only Fundamental Rights                   |
| High Court    | Article 226       | Fundamental Rights and other legal rights |



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